

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.
Date Filed:
Plaintiff designates
QUEENS County as
the place of trial

CLAUDIO NUNEZ,

Plaintiff(s)

The basis of venue is
Place of occurrence

SUMMONS

-against-

THE CITY OF NEW YORK, P.O. VINCENT
ESPOSITO (shield #5930), P.O. ROBERT
HAWKINS (shield #2303), P.O. EDWIN
ESTRADA (shield #2015), P.O. ROBERT
ANDERSON (shield #5960) and P.O.
MICHAEL KORABEL (shield # unknown)

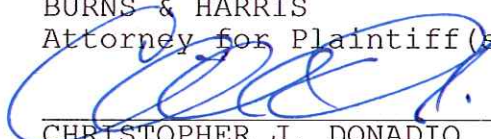
Defendant(s)

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the Complaint in
this action and to serve a copy of your answer, or, if the
Complaint is not served with this Summons, to serve a Notice of
Appearance, on the Plaintiff's attorney(s) within 20 days after
the service of this Summons, exclusive of the day of service (or
within 30 days after the service is complete if this summons is
not personally delivered to you within the State of New York);
and in the case of your failure to appear or answer, judgment
will be taken against you by default for the relief demanded in
the Complaint.

Dated: New York, New York
December 5, 2014

BURNS & HARRIS
Attorney for Plaintiff(s)



CHRISTOPHER J. DONADIO
233 Broadway - Suite 900
New York, New York 10279
(212) 393-1000

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. ROBERT ANDERSON (shield #5960)
P.O. VINCENT ESPOSITO (shield #5930)
P.O. ROBERT HAWKINS (shield #2303)
P.O. EDWIN ESTRADA (shield #2015)
1 Police Plaza
New York, NY 10007

P.O. MICHAEL KORABEL (shield # unknown) at 52nd Precinct
3016 Webster Avenue
Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

CLAUDIO NUNEZ,

Plaintiff,

Index #:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. VINCENT
ESPOSITO (shield #5930, P.O. ROBERT
HAWKINS (shield #2303), P.O. EDWIN
ESTRADA (shield #2015), P.O. ROBERT
ANDERSON (shield #5960) and P.O.
MICHAEL KORABEL (shield # unknown),

Defendants,

Plaintiff, by his attorneys, BURNS & HARRIS, as and for
a Verified Complaint herein, respectfully sets forth and alleges:

AS AND FOR A FIRST CAUSE OF ACTION:

1. That at all times herein mentioned, the defendant
THE CITY OF NEW YORK was a Municipal corporation duly existing
under and by virtue of the laws of the State of New York.

2. That at all times herein mentioned, the defendant
THE CITY OF NEW YORK was a corporation doing business in the
State of New York.

3. That at all times herein mentioned, the defendant
THE CITY OF NEW YORK operated a police department, including the
114th Precinct, as part of and in conjunction with its municipal
function.

4. That at all times herein mentioned, the defendant
THE CITY OF NEW YORK maintained said police department and
precinct.

5. That at all times herein mentioned, the defendant THE CITY OF NEW YORK managed said police department and precinct.

6. That at all times herein mentioned, the defendant THE CITY OF NEW YORK controlled said police department and precinct.

7. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, its servants, agents and/or employees employed police officers, and other personnel, to work as representatives of THE CITY OF NEW YORK.

8. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of its said servants, agents, police officers, detectives and/or employees conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

9. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, had the duty to ensure that its said servants, agents, police officers, detectives and/or employees conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

10. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK, its servants, agents, police officers, detectives, employees and/or personnel to provide for and/or ensure the safety, protection, security and well-being of peaceful and law-abiding citizens.

11. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK, to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that its servants, agents, police officers, detectives, employees and/or personnel provide for and/or ensure the safety, protection, security and well-being of peaceful and law-abiding citizens.

12. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of its said servants, agents, police officers, detectives and/or employees conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

13. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that its said servants, agents, police officers, detectives and/or employees conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

14. That at all times herein mentioned, the defendant P.O. VINCENT ESPOSITO (shield #5930) was a servant, agent, employee and/or representative of the defendant THE CITY OF NEW YORK.

15. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a police officer, known as P.O. VINCENT ESPOSITO (shield #5930), to work as a representative of THE CITY OF NEW YORK.

16. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of the defendant P.O. VINCENT ESPOSITO (shield #5930) conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

17. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the defendant P.O. VINCENT ESPOSITO (shield #5930) conduct himself in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

18. That at all times herein mentioned, the defendant P.O. ROBERT HAWKINS (shield #2303) was a servant, agent, employee and/or representative of the defendant THE CITY OF NEW YORK.

19. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a police officer, known as P.O. ROBERT HAWKINS (shield #2303), to work as a representative of THE CITY OF NEW YORK.

20. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of the defendant P.O. ROBERT HAWKINS (shield #2303) conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

21. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the defendant P.O. ROBERT HAWKINS (shield #2303) conduct himself in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

22. That at all times herein mentioned, the defendant P.O. EDWIN ESTRADA (shield #2015) was a servant, agent, employee and/or representative of the defendant THE CITY OF NEW YORK.

23. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a police officer, known as P.O. EDWIN ESTRADA (shield #2015), to work as a representative of THE CITY OF NEW YORK.

24. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of the defendant P.O. EDWIN ESTRADA (shield #2015) conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

25. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the defendant P.O. EDWIN ESTRADA (shield #2015) conduct himself in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

26. That at all times herein mentioned, the defendant P.O. ROBERT ANDERSON (shield #5960) was a servant, agent, employee and/or representative of the defendant THE CITY OF NEW YORK.

27. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a police officer, known as P.O. ROBERT ANDERSON (shield #5960), to work as a representative of THE CITY OF NEW YORK.

28. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of the defendant P.O. ROBERT ANDERSON (shield #5960) conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

29. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the defendant P.O. ROBERT ANDERSON (shield #5960) conduct himself in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

30. That at all times herein mentioned, the defendant P.O. MICHAEL KORABEL (shield # unknown) was a servant, agent, employee and/or representative of the defendant THE CITY OF NEW YORK.

31. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a police officer, known as P.O. MICHAEL KORABEL (shield # unknown), to work as a representative of THE CITY OF NEW YORK.

32. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of the defendant P.O. MICHAEL KORABEL (shield # unknown) conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

33. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the defendant P.O. MICHAEL KORABEL (shield # unknown) conduct himself in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

34. That on the 11th day of January, 2011, the plaintiff CLAUDIO NUNEZ, was arrested by the defendants herein.

35. That commencing on the 11th day of January, 2011, the defendants herein, and each of them, jointly and separately, severally and concurrently, their servants, agents, police officers and/or employees and personnel acting within the scope of their employment by the said defendant THE CITY OF NEW YORK,

did carelessly, negligently, illegally, falsely and wrongfully arrest the plaintiff, without probable or just cause or provocation, falsely accuse the plaintiff of crimes of which he was wholly innocent, and maliciously prosecuted the plaintiff for such crimes.

36. That at all times herein mentioned, the defendants intentionally, wantonly, maliciously and falsely prosecuted the plaintiff for the criminal charges of which they falsely accused him.

37. That at all times herein mentioned, the defendants intentionally, wantonly and maliciously prosecuted and/or caused, directed and compelled the prolonged malicious prosecution of the plaintiff, as a common criminal, causing and/or compelling him to appear in public and in Court and falsely prosecuted the plaintiff, under indictment number N10087-2011.

38. That on the 31st day of January, 2014, the said criminal charges against the plaintiff were dismissed.

39. That heretofore, and on/or about April 24, 2014, and within 90 days after the claim herein served upon arose, the plaintiff caused a Notice of Claim, in writing, sworn to by the plaintiff containing the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendant THE CITY OF NEW YORK, by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

40. That more than thirty (30) days have elapsed since the aforesaid Notice of Claim was served on the said defendant.

41. That the said defendant was negligent and has refused and neglected to adjust, settle and pay the same.

42. That oral examination of the plaintiff has been conducted by the defendant in compliance with Section 50-H of the General Municipal Law.

43. That by reason of the foregoing, this plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

44. That by reason of the foregoing, plaintiff is entitled to punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION:

45. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First Cause of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

46. That all of the foregoing and the abuse of process by the defendants herein, their servants, agents, police officers, detectives and/or employees were in wanton, intentional and malicious disregard for the life, health, safety, freedom, protection, rights and well-being of the plaintiff.

47. That by reason of the foregoing, this plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A THIRD CAUSE OF ACTION:

48. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First and Second Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

49. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK to select and screen for hiring for retention or discharge as employees those who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated for such employment.

50. That at all times herein mentioned, it was the duty of the said defendant to train, discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties, activities and behaviors of its servants, agents, police officers, detectives, employees and/or personnel.

51. That by reason of the negligence of the defendant in hiring, monitoring and retention of said defendant police officers herein, with knowledge of the unsuitable, unstable and

unfitness to act and serve and unfitness to continue to act and serve as employees by reason of the defendant's breach of said duties, the plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing him extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

52. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A FOURTH CAUSE OF ACTION:

53. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second and Third Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

54. That the defendants herein carelessly, negligently, wrongfully, wantonly, intentionally and maliciously targeted the plaintiff in an act of racial profiling, in connection with the malicious prosecution of said plaintiff based upon such false charges, due to his race.

55. That the said discriminatory actions and racial profiling on the part of the defendants herein, their agents, servants, police officers, employees and/or representatives,

unfairly discriminated against individuals of color and/or ethnicity in violation of their own rules, code of ethics, and the Laws of the State of New York.

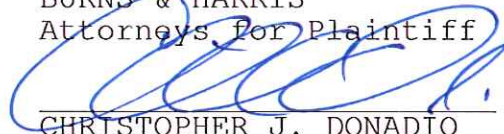
56. That by reason of the foregoing, the plaintiff has suffered severe damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

WHEREFORE, plaintiff demands judgment against the defendants, the amount sought on each cause of action exceeding the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction herein, together with the costs and disbursements of this action, and with interest from the date of this occurrence.

Dated: New York, New York
December 5, 2014

Yours, etc.,

BURNS & HARRIS
Attorneys for Plaintiff



CHRISTOPHER J. DONADIO
233 Broadway - Suite 900
New York, New York 10279
(212) 393-1000

ATTORNEY VERIFICATION

CHRISTOPHER J. DONADIO, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

I am the attorney for the plaintiff in the within action and have read the foregoing **COMPLAINT** and know the contents thereof; the same is true upon information and belief.

This verification is made by this affirmant and not by said plaintiff because said plaintiff reside(s) in a County other than the County wherein your affirmant maintains his office.

The grounds of affirmant's knowledge and belief are as follows: Conference with clients and notes and records contained in the file maintained in the regular course of business.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
December 5, 2014


CHRISTOPHER J. DONADIO

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

CLAUDIO NUNEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. VINCENT ESPOSITO (Shield No. 5930),
P.O. ROBERT HAWKINS (Shield No. 2303),
P.O. EDWIN ESTRADA (Shield No. 2015),
P.O. ROBERT ANDERSON (Shield No. 5960) and
P.O. MICHAEL KORABEL (shield # unknown)

Defendants.

SUMMONS AND VERIFIED COMPLAINT

BURNS & HARRIS, ESQS.

Attorneys for Plaintiff

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